

Online Safety Act 2023 (c. 50): Structured Reference

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Corpus role: Shared legislation — all 3 typology indices + pre-publication index

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This document is a structured reference extract for use as corpus ground-truth. The Act is long and subject to ongoing amendment (changes up to 2026 are already incorporated on the official site). The **canonical full text** should be treated as authoritative: - Revised contents: <https://www.legislation.gov.uk/ukpga/2023/50/contents> - Official King's Printer full-text PDF: https://www.legislation.gov.uk/ukpga/2023/50/pdfs/ukpga_20230050_en.pdf - Explanatory Notes: <https://www.legislation.gov.uk/ukpga/2023/50/notes/contents>

Purpose and scope

The Online Safety Act 2023 places statutory duties of care on providers of regulated user-to-user services and search services to make them more responsible for users' safety. Services are in scope where they have links with the UK (a significant number of UK users, the UK as a target market, or accessibility by UK users with a material risk of significant harm), regardless of where the provider is based. Ofcom is the independent regulator and sets out compliance steps in codes of practice. Duties are proportionate to the risk of harm and the size and capacity of the provider, and both Ofcom and providers must have particular regard to users' rights (including freedom of expression and privacy).

Duties most relevant to community content moderation

Illegal content duties. Providers must take proportionate measures to (a) reduce the risk that their service is used to commit or facilitate priority offences, (b) prevent users encountering priority illegal content, and (c) swiftly take down illegal content once aware of it. Providers must carry out and keep up to date an illegal content risk assessment.

Priority illegal content — the categories that providers must proactively guard against include, among others:

- racially or religiously aggravated public order offences
- inciting violence

- terrorism
- child sexual abuse and exploitation
- controlling or coercive behaviour
- harassment and stalking
- threatening communications
- fraud
- illegal immigration and people smuggling
- selling illegal drugs or weapons
- intimate image abuse
- content encouraging or assisting suicide or serious self-harm

For the LPA system, the **racially or religiously aggravated public order offences** and **inciting violence / hatred** categories are the primary anchors when assessing incoming hostile content, and threatening-communications and harassment provisions anchor escalation decisions.

Other illegal content. Beyond the priority list, providers must remove any illegal content with an individual victim (actual or intended) when it is flagged or otherwise comes to their attention.

Content harmful to children. Services likely to be accessed by children must protect them from Primary Priority Content (pornography; content promoting suicide, self-harm, or eating disorders) and give age-appropriate access to Priority Content, which expressly includes **abusive or hateful content** and content depicting or encouraging serious violence.

User-empowerment duties (Category 1 services). The largest user-to-user services must offer adult users optional tools to reduce the likelihood of encountering certain legal-but-harmful content, expressly including **abusive or hate content that is racist, antisemitic, homophobic, or misogynist**.

Algorithmic harm. Providers must consider, within their risk assessments, how recommender systems and other algorithms affect users' exposure to illegal content and (for children) harmful content. The Act recognises that harm can arise from how content is disseminated — for example, an algorithm repeatedly pushing content in high volume over a short period — which is directly relevant to high-volume pile-on scenarios.

New communications offences (in force 31 January 2024)

The Act created criminal offences applying directly to individuals, including: threatening communications; sending false information intended to cause non-trivial harm; encouraging or assisting serious self-harm; cyberflashing; intimate image abuse; and epilepsy trolling. The threatening-communications offence is particularly relevant when triaging incoming hostile content that may cross from harassment into criminality.

Enforcement

Ofcom can require remedial action and impose fines of up to £18 million or 10% of qualifying worldwide revenue, whichever is greater. Senior managers can face criminal liability for specified failures. In extreme cases, with court agreement, Ofcom can apply business-disruption measures (requiring payment providers, advertisers or ISPs to withdraw services).

How this anchors the LPA corpus

In the retrieval corpus, this reference grounds: (1) what counts as priority illegal content for the incoming branch; (2) the legal threshold distinguishing "harmful but lawful" content (where user-empowerment / platform-realism applies) from illegal content (where takedown duties apply); and (3) the realistic limits of platform action, supporting the platform-realism prompt constraint. It applies across all three typology indices, with the racial/religious aggravation provisions most salient for the race/ethnicity, religion/belief, and national-origin branches.

Statutory text — Schedule 7 priority offences (verbatim extracts)

Reproduced from legislation.gov.uk, © Crown copyright, Open Government Licence v3.0. Schedule 7 offences are designated "priority offences" by section 59 of the Act; Part 3 imposes duties on regulated user-to-user and search services in relation to priority offences and content amounting to them. The paragraphs most relevant to community moderation are reproduced in full below; remaining categories are listed by heading.

Section 59 designation. Criminal offences listed in Schedule 7 are "priority offences." Terrorism offences (Schedule 5) and child sexual exploitation and abuse offences (Schedule 6) are separate priority categories.

Public order offences, harassment, stalking and fear or provocation of violence (the core paragraphs for this system)

1. An offence under section 2 of the Suicide Act 1961 (assisting suicide etc).
3. An offence under section 16 of the Offences against the Person Act 1861 (threats to kill).
4. An offence under any of the following provisions of the Public Order Act 1986— (a) section 4 (fear or provocation of violence); (b) section 4A (intentional harassment, alarm or distress); (c) section 5 (harassment, alarm or distress).
5. An offence under any of the following provisions of the Public Order Act 1986— (a) section 18 (use of words or behaviour or display of written material); (b) section 19 (publishing or distributing written material); (c) section 21 (distributing, showing or playing a recording); (d) section 29B (use of words or behaviour or display of written material); (e) section 29C (publishing or distributing written material); (f) section 29E (distributing, showing or playing a recording).

Paragraph 5(a)-(c) are the Public Order Act 1986 Part 3 offences of stirring up racial hatred; paragraph 5(d)-(f) are the Part 3A offences of stirring up religious hatred

(and hatred on grounds of sexual orientation). These are the provisions most directly engaged by hostile content targeting the race/ethnicity, religion/belief and national-origin typologies.

6. An offence under section 50A of the Criminal Law (Consolidation) (Scotland) Act 1995 (racially-aggravated harassment).

7. An offence under any of the following provisions of the Protection from Harassment Act 1997— (a) section 2 (harassment); (b) section 2A (stalking); (c) section 4 (putting people in fear of violence); (d) section 4A (stalking involving fear of violence or serious alarm or distress).

9. An offence under any of the following provisions of the Crime and Disorder Act 1998 — (a) section 31 (racially or religiously aggravated public order offences); (b) section 32 (racially or religiously aggravated harassment etc).

11. An offence under section 76 of the Serious Crime Act 2015 (controlling or coercive behaviour in an intimate or family relationship).

(Paragraphs 2, 8 and 10 contain the equivalent Northern Ireland and Scotland offences for assisting suicide, harassment and threatening or abusive behaviour / stalking.)

Remaining Schedule 7 categories (by heading)

Drugs and psychoactive substances (paras 12-13); firearms and other weapons (paras 14-22); assisting illegal immigration (para 23); human trafficking (paras 24-26); sexual exploitation (paras 27-28); sexual images (paras 29-31, including disclosing or threatening to disclose private sexual photographs/films); proceeds of crime (para 32); fraud (paras 33-34); financial services (paras 35-36); foreign interference (para 37, National Security Act 2023 s.13); animal welfare (para 38); and inchoate offences — attempt, conspiracy, encouraging or assisting, and aiding and abetting any specified offence (para 39). *Schedule 7 has since been amended (S.I. 2024/1188 and the 2025 Regulations) to add the section 184 offence of encouraging or assisting serious self-harm and to update the intimate-image offences.*

Related communications offences (Part 10 of the Act)

The Act also created communications offences applying directly to individuals, relevant when triaging incoming hostile content that may cross into criminality: **section 179** (false communications offence — sending a message conveying information the sender knows to be false, intending to cause non-trivial psychological or physical harm), **section 181** (threatening communications offence), and **section 184** (encouraging or assisting serious self-harm). These are reproduced in full on legislation.gov.uk and can be embedded individually if required.